Brazoria County District Court

Cause No. 2024-CV-0037

Jimmy Steele, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	2-4-25
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strcit proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

Subject to and without waiving the foregoing general denial, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence caused or contributed to the collision. Plaintiff failed to keep a proper lookout, failed to yield the right-of-way when changing lanes, and failed to maintain a safe distance from surrounding traffic. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced in proportion to Plaintiff's percentage of responsibility, and Plaintiff may be barred entirely if that percentage exceeds fifty percent.

Second, the injuries and damages claimed were caused in whole or in part by the acts or omissions of persons or entities other than Defendant, including other motorists involved in the traffic at the time of the occurrence. Defendant requests that the trier of fact assign responsibility to all such persons under Section 33.004 of the Texas Civil Practice and Remedies Code.

Third, Plaintiff failed to mitigate damages by failing to follow reasonable medical advice and by incurring expenses that were unnecessary or unreasonable in amount. Any recovery must be limited accordingly.